

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2921

By: Pittman

AS INTRODUCED

An Act relating to professions and occupations;
enacting the Dental Therapy Act; providing
definitions; providing education, licensing, and
examination requirements; limiting scope of practice;
providing supervision requirements; preserving health
care records; providing for codification; and
providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 329.1 of Title 59, unless there
is created a duplication in numbering, reads as follows:

As used in the Dental Therapy Act:

1. "Dental therapist" means an individual licensed by the Board
of Dentistry who engages in the limited practice of dentistry;
2. "Dental therapy" means the limited practice of dentistry,
consisting of the services, treatments, and procedures specified
under state law;
3. "Direct supervision" means that the dentist is present in
the dental office or other practice setting, personally diagnoses

1 the condition to be treated, personally authorizes each procedure,
2 and, before dismissal of the patient, evaluates the performance of
3 the allied dental personnel;

4 4. "General supervision" means that the dentist is not present
5 in the dental office or other practice setting or on the premises at
6 the time tasks or procedures are being performed by the dental
7 therapist, but that the tasks or procedures performed by the dental
8 therapist are being performed with the prior knowledge and consent
9 of the dentist;

10 5. "Health care provider" means a dental therapist, dental
11 hygienist, physician assistant, nurse-midwife, or nurse
12 practitioner;

13 6. "Indirect supervision" means that the dentist is present in
14 the dental office or other practice setting, authorizes each
15 procedure, and remains in the office while the procedures are being
16 performed by the allied dental personnel;

17 7. "Qualifying dentist" means a dentist who is licensed in this
18 state, who actively practices in this state; and

19 8. "Uninsured patient" means a patient who lacks dental health
20 coverage, either through a public health care program or private
21 insurance, and has an annual gross family income equal to or less
22 than two hundred percent (200%) of the federal poverty guidelines.
23
24

1 SECTION 2. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 329.1 of Title 59, unless there
3 is created a duplication in numbering, reads as follows:

4 A. The examining board shall grant a license to practice dental
5 therapy to an individual who does all of the following:

6 1. Submits an application for the license to the Board of
7 Dentistry on a form provided by the department;

8 2. Pays the fee specified in state laws;

9 3. Submits evidence satisfactory to the examining board that he
10 or she has done one of the following:

11 a. graduated from an accredited dental therapy education
12 program,

13 b. graduated from a dental therapy education program that
14 was not accredited at the time of graduation, but that
15 satisfies all of the following:

16 (1) the program was approved by the Board of
17 Dentistry on or before the effective date of this
18 act,

19 (2) the program was accredited as of the date the
20 individual applies for a license under this
21 subsection,

22 c. graduated from a dental therapy education program
23 located in Oklahoma that, at the time of graduation,
24 was not fully accredited but had received initial

1 accreditation. This subparagraph applies to a dental
2 therapy education program only during the four-year
3 period beginning after the program's inception. After
4 those four (4) years have elapsed, an individual may
5 not qualify for a license under this subsection on the
6 basis of graduation from that program unless the
7 program has subsequently become accredited. The
8 examining board shall maintain a register of
9 individuals granted a license on the basis of
10 graduation from a program described in this
11 subparagraph;

12 4. Submits evidence satisfactory to the examining board that he
13 or she has passed a national board dental therapy examination and a
14 dental therapy clinical examination administered by a regional
15 testing service that has been approved by the examining board to
16 administer clinical examinations for dental professionals. If a
17 national board examination or a regional testing service examination
18 for dental therapy does not exist, the examining board shall accept
19 evidence of passing an alternative examination administered by
20 another entity or testing service that is approved by the examining
21 board;

22 5. Passes an examination administered by the examining board on
23 the statutes and rules relating to dental therapy;
24

1 6. Submits evidence satisfactory to the examining board that he
2 or she has current proficiency in cardiopulmonary resuscitation,
3 including the use of an automated external defibrillator, achieved
4 through instruction provided by an individual, organization, or
5 institution of higher education approved by the state to provide
6 such instruction;

7 7. If the individual was licensed or is currently licensed in
8 another state or territory of the United States or in another
9 country, the individual submits information related to his or her
10 licensure in other jurisdictions as required by the examining board;

11 8. Completes any other requirements established by the
12 examining board by rule that are comparable to and no more
13 restrictive than the requirements established by the board for
14 dentists and dental hygienists.

15 B. The examining board may not renew a license to practice
16 dental therapy unless the applicant for renewal attests that he or
17 she has complied with state laws and regulations, that he or she has
18 current proficiency in cardiopulmonary resuscitation, and that he or
19 she has current proficiency in the use of an automated external
20 defibrillator achieved through instruction provided by an
21 individual, organization, or institution of higher education
22 approved by the state to provide such instruction.

23 C. A person is not eligible for renewal of a license to
24 practice dental therapy unless the person has taught, prepared,

1 attended, or otherwise completed, during the two-year period
2 immediately preceding the renewal date specified, twelve (12) credit
3 hours of continuing education relating to the clinical practice of
4 dental therapy that is sponsored or recognized by a local, state,
5 regional, national, or international dental, dental therapy, dental
6 hygiene, dental assistance, or medical-related professional
7 organization.

8 D. Continuing education may include training in any of the
9 following:

10 1. Basic life support or cardiopulmonary resuscitation. Not
11 more than two (2) credit hours may be satisfied by such training;

12 2. Infection control training. Not less than two (2) of the
13 credit hours required must be satisfied by such training.

14 E. After consultation with the Oklahoma Board of Dentistry, the
15 examining board may promulgate rules requiring that continuing
16 education credit hours include courses in specific clinical
17 subjects.

18 1. The credit hours required may be satisfied by independent
19 study, correspondence, or Internet programs or courses.

20 2. This section does not apply to an applicant for renewal of a
21 license that expires on the first renewal date after the date on
22 which the examining board initially granted the license.

23 3. A person may substitute credit hours of college level
24 courses related to the practice of dental therapy for the credit

1 hours required. For purposes of this subsection, one (1) credit
2 hour of a college level course is equivalent to six (6) credit hours
3 of continuing education.

4 4. One (1) hour of teaching or preparing a continuing education
5 program is equivalent to one (1) credit hour of continuing
6 education, but a person who teaches or prepares a continuing
7 education program may obtain credit for one program only once.

8 5. The examining board may require applicants for renewal of a
9 license to practice dental therapy to submit proof of compliance
10 with the requirements of this section.

11 SECTION 3. NEW LAW A new section of law to be codified
12 in the Oklahoma Statutes as Section 329.2 of Title 59, unless there
13 is created a duplication in numbering, reads as follows:

14 A. Dental therapists may provide dental therapy services only
15 as an employee of specified employers and only under the supervision
16 of a dentist who is either similarly employed or who directly
17 employs the dental therapist. The dental therapist must also have a
18 collaborative management agreement with a dentist that addresses
19 various aspects of the dental therapist's practice and supervision.
20 Dental therapists are, subject to the terms of a collaborative
21 management agreement and what was covered in their dental therapy
22 education program, limited to providing services, treatments, and
23 specified procedures as well as additional services, treatments, or
24 procedures specified by the board by rule.

1 B. Dental therapists may initially provide dental therapy
2 services only under the direct or indirect supervision of a
3 qualifying dentist. Once a licensed dental therapist has provided
4 dental therapy services for at least two thousand (2,000) hours, the
5 dental therapist may provide services under the general supervision
6 of a qualifying dentist.

7 C. The level of supervision for a dental therapist may be
8 further limited under the terms of a collaborative management
9 agreement.

10 D. Dental therapists must also either:

11 1. Limit their practice to federally defined dental shortage
12 areas; or

13 2. Practice in settings where at least fifty percent (50%) of
14 their patient base consists of certain specified populations.

15 E. Dental therapists must complete twelve (12) hours of
16 continuing education each biennium.

17 F. Dental therapists are subject to and covered under various
18 other state laws.

19 G. No contract of employment entered into between a dentist or
20 dental therapist and any other party under which the dentist or
21 dental therapist renders dental services may require the dentist or
22 dental therapist to act in a manner that violates the professional
23 standards for dentistry or dental therapy set forth in this act.
24 Nothing in this subsection limits the ability of the other party to

1 control the operation of the dental practice in a manner in
2 accordance with the professional standards for dentistry or dental
3 therapy set for in this act.

4 H. No contract of employment entered into between a dental
5 therapist and any other party under which the dental therapist is
6 employed to practice dental therapy may require a dental therapist
7 to meet a minimum quota for the number of patients seen or the
8 number of procedures performed.

9 SECTION 4. NEW LAW A new section of law to be codified
10 in the Oklahoma Statutes as Section 329.3 of Title 59, unless there
11 is created a duplication in numbering, reads as follows:

12 A. A dental hygienist may practice dental hygiene or perform
13 remediable procedures only as authorized by a dentist or dental
14 therapist who is licensed to practice dentistry or dental therapy
15 under this chapter and who is present in the facility in which those
16 practices or procedures are performed.

17 B. A dental hygienist may practice dental hygiene or perform
18 remediable procedures if a dentist or dental therapist who is
19 licensed to practice dentistry or dental therapy under this chapter
20 is not present in the facility in which those practices or
21 procedures are performed only if all of the required conditions are
22 met.

23

24

SECTION 5. NEW LAW A new section of law to be codified

in the Oklahoma Statutes as Section 329.4 of Title 59, unless there is created a duplication in numbering, reads as follows:

A. The scope of practice of a dental therapist shall, subject to the terms of a collaborative management agreement, be limited to providing the following services, treatments, and procedures:

1. Oral evaluation and assessment of dental disease and formulation of an individualized treatment plan;

2. Identification of oral and systemic conditions requiring evaluation or treatment by dentists, physicians, or other health care providers and managing referrals;

3. Comprehensive charting of the oral cavity;

4. Oral health instruction and disease prevention education, including nutritional counseling and dietary analysis;

5. Exposure and evaluation of radiographic images;

6. Dental prophylaxis, including subgingival scaling and polishing procedures;

7. Dispensing and administration via the oral or topical route of nonnarcotic analgesic, anti-inflammatory, and antibiotic medications as prescribed by a licensed health care provider;

8. Application of topical preventative or prophylactic agents, including fluoride varnish, antimicrobial agents, caries arresting medicaments, and pit and fissure sealants;

9. Pulp vitality testing;

- 1 10. Application of desensitizing medications or resins;
- 2 11. Fabrication of athletic mouth guards and soft occlusal
- 3 guards;
- 4 12. Changing of periodontal dressings;
- 5 13. Administration of local anesthetic and nitrous oxide;
- 6 14. Simple extraction of erupted primary teeth;
- 7 15. Nonsurgical extraction of periodontally diseased permanent
- 8 teeth with tooth mobility of +3 to +4 to the extent authorized in
- 9 the dental therapist's collaborative management agreement, except
- 10 for the extraction of a tooth that is unerupted, impacted, or
- 11 fractured or that needs to be sectioned for removal;
- 12 16. Emergency palliative treatment of dental pain limited to
- 13 the procedures in this subsection;
- 14 17. Preparation and placement of direct restoration in primary
- 15 and permanent teeth;
- 16 18. Fabrication and placement of single-tooth temporary crowns;
- 17 19. Preparation and placement of preformed crowns on primary
- 18 teeth;
- 19 20. Indirect and direct capping on permanent teeth;
- 20 21. Indirect pulp capping on primary teeth;
- 21 22. Intraoral suture placement and removal;
- 22 23. Minor adjustment and repair of removable prostheses;
- 23 24. Placement and removal of space maintainers;
- 24 25. Pulpotomy on primary teeth;

1 26. Tooth reimplantation and stabilization;

2 27. Recementing of a permanent crown;

3 28. Any additional services, treatments, or procedures
4 specified in state law.

5 B. A dental therapist shall, except as otherwise provided,
6 limit his or her practice of dental therapy to providing the
7 services, treatments, and procedures covered by his or her dental
8 therapy education program.

9 If any service, treatment, or procedure was not covered by a
10 dental therapist's dental therapy education program, the dental
11 therapist may provide that service, treatment, or procedure if the
12 dental therapist has subsequently received additional dental therapy
13 educational training to provide that service, treatment, or
14 procedure.

15 C. Except as otherwise provided, a dental therapist licensed
16 under this act may provide dental therapy services in this state
17 only under the direct supervision or indirect supervision of a
18 qualifying dentist with whom the dental therapist has entered into a
19 collaborative management agreement.

20 D. Once a dental therapist licensed under this act has provided
21 dental therapy services for at least five hundred (500) hours and up
22 to two thousand (2,000) hours under direct supervision or indirect
23 supervision, the dental therapist may provide dental therapy
24 services in this state under the general supervision of a qualifying

1 dentist with whom the dental therapist has entered into a
2 collaborative management agreement.

3 E. For purposes of the hours required under subsection D of
4 this section, hours may include hours of providing dental therapy
5 services in this state under direct supervision or indirect
6 supervision of a qualifying dentist or hours of providing dental
7 therapy services under direct supervision or indirect supervision
8 while licensed as a dental therapist outside this state, but may not
9 include any hours completed prior to graduating from the dental
10 therapy education program.

11 F. The level of supervision for a dental therapist may be
12 further limited under the terms of a collaborative management
13 agreement.

14 G. A supervising dentist shall accept responsibility for all
15 services performed by a dental therapist pursuant to a collaborative
16 management agreement. If services needed by a patient are beyond
17 the dental therapist's scope of practice or authorization under the
18 collaborative management agreement, the dental therapist shall, to
19 the extent required under the collaborative management agreement,
20 consult with the supervising dentist as needed to arrange for those
21 services to be provided by a dentist or another qualified health
22 care provider.

23 H. Prior to providing any dental therapy services, a dental
24 therapist shall enter into a written collaborative management

1 agreement with a qualifying dentist who will serve as a supervising
2 dentist under subsection G of this section. The agreement must be
3 signed by the dental therapist and the qualifying dentist and
4 address all of the following:

5 1. The practice settings where services may be provided and the
6 patient populations that may be served;

7 2. Consistent with and subject to state law, any conditions or
8 limitations on the services that may be provided by the dental
9 therapist, the level of supervision required, and any circumstances
10 requiring consultation prior to performing services;

11 3. Age-specific and procedure-specific practice protocols;

12 4. Dental record-keeping procedures;

13 5. A quality assurance plan for monitoring care provided by the
14 dental therapist;

15 6. Protocols for administering and dispensing medications;

16 7. Criteria or protocols relating to the provision of care to
17 patients with specific medical conditions, treatments, or
18 medications;

19 8. Policies relating to supervision of dental hygienists and
20 other staff;

21 9. A plan for the referral of patients to other dental or
22 health care providers or clinics when services needed are beyond the
23 scope of practice or authorization of the dental therapist;

1 10. Whether and to what extent the dental therapist may perform
2 services described in the State Dental Act.

3 I. A collaborative management agreement shall be limited to
4 covering one qualifying dentist and one dental therapist.

5 J. A dental therapist may enter into multiple collaborative
6 management agreements. No dentist may have collaborative management
7 agreements with more than four dental therapists at any time. A
8 dental therapist may, subject to state law, provide dental therapy
9 services only as an employee of one or more of the following:

10 1. A dentist with whom the dental therapist has entered into a
11 collaborative management agreement;

12 2. A dental practice;

13 3. A school district or the operator of a private school, or a
14 tribal school;

15 4. The operator of a school for the education of dentists or
16 dental hygienists;

17 5. A state or federal prison, a county jail, or other federal,
18 state, county, or municipal correctional or detention facility, or a
19 facility established to provide care for terminally ill patients;

20 6. A local health department;

21 7. A charitable institution open to the general public or to
22 members of a religious sect or order;

23 8. A nonprofit home health care agency;

1 9. The operator of a nonprofit dental care program serving
2 primarily indigent, economically disadvantaged, or migrant worker
3 populations;

4 10. A health care employer, as defined by state law.

5 K. A dentist may not enter into a collaborative management
6 agreement with a dental therapist unless the dentist directly
7 employs the dental therapist as provided in paragraph 1 of
8 subsection J of this section or the dentist is employed by or
9 contracts with the dental therapist's employer described in
10 paragraphs 2 through 10 of subsection J of this section.

11 L. A dental therapist shall at all times comply with at least
12 one of the following:

13 1. Limit his or her practice to practicing in one or more
14 dental health shortage areas. If a dental therapist begins
15 practicing in a dental health shortage area and that area loses its
16 designation as a dental health shortage area while the dental
17 therapist continues to practice in that area, the dental therapist
18 is considered to satisfy this paragraph as long as the dental
19 therapist continues to practice in that area;

20 2. Practice in one or more settings in which at least fifty
21 percent (50%) of the total patient base of the dental therapist
22 consists of patients who are any of the following:

23 a. medical assistance patients,

24 b. uninsured patients,

- c. patients receiving dental care at free and charitable clinics,
- d. patients receiving dental care at federally qualified health centers,
- e. patients who reside in long-term care facilities,
- f. veterans,
- g. patients who are members of a federally recognized Indian tribe or band,
- h. patients receiving dental care at clinics or facilities,
- i. patients receiving dental care at clinics or facilities located on tribal lands,
- j. patients with medical disabilities or chronic conditions that create barriers of access to dental care.

SECTION 6. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 329.5 of Title 59, unless there is created a duplication in numbering, reads as follows:

A. A person who manages or controls a business that offers dental, dental therapy, or dental hygiene services, including management or control of a business through which the person allows another person to offer dental, dental therapy, or dental hygiene services, shall preserve patient health care records for an amount of time determined by the examining board by rule.

1 B. A person who manages or controls a business that offers
2 dental, dental therapy, or dental hygiene services, including
3 management or control of a business through which the person allows
4 another person to offer dental, dental therapy, or dental hygiene
5 services, shall, upon request of a patient or person authorized by
6 the patient, transfer the patient health care records of the patient
7 to another person that the patient or person authorized by the
8 patient specifies to receive the patient health care records.

9 SECTION 7. NEW LAW A new section of law to be codified
10 in the Oklahoma Statutes as Section 329.6 of Title 59, unless there
11 is created a duplication in numbering, reads as follows:

12 A. A dentist or dental therapist who is licensed to practice
13 dentistry under this act may delegate to an individual who is not
14 licensed under this title only the performance of remediable
15 procedures, and only if all of the following conditions are met:

16 1. The unlicensed individual performs the remediable procedures
17 in accordance with a treatment plan approved by the dentist or
18 dental therapist;

19 2. The dentist or dental therapist is on the premises when the
20 unlicensed individual performs the remediable procedures;

21 3. The unlicensed individual's performance of the remediable
22 procedures is subject to inspection by the dentist or dental
23 therapist.

1 B. Subject to the requirements of state law, a dentist or
2 dental therapist who is licensed to practice dentistry under this
3 act may delegate to a dental hygienist who is licensed to practice
4 dental hygiene under this act the performance of remediable
5 procedures and the administration of oral system premedication,
6 local anesthesia, nitrous oxide inhalation analgesia, and
7 subgingival sustained released chemotherapeutic agents, to the
8 extent the dentist or dental therapist has the authority to perform
9 the activity personally.

10 C. A dentist or dental therapist who delegates to another
11 individual the performance of any practice or remediable procedure
12 is responsible for that individual's performance of that delegated
13 practice or procedure.

14 D. The examining board may, without further notice or process,
15 limit, suspend, or revoke the license or certificate of any dentist,
16 dental therapist, or dental hygienist, or the registration of a
17 mobile dentistry program registrant, who fails, within sixty (60)
18 days after the mailing of written notice to the dentist's, dental
19 therapist's, dental hygienist's, or registrant' last-known address,
20 to renew the license, certificate, or registration.

21 E. The examining board may make investigations and conduct
22 hearings in regard to any alleged action of any dentist, dental
23 therapist, dental hygienist, or expanded function dental auxiliary,
24 of a mobile dentistry program registrant, or of any other person it

1 has reason to believe is engaged in or has engaged in the practice
2 of dentistry, dental therapy, or dental hygiene, or the operation of
3 a mobile dentistry program, in this state, and may, on its own
4 motion, or upon complaint in writing, reprimand any dentist, dental
5 therapist, dental hygienist, or expanded function dental auxiliary
6 who is licensed or certified under this act, or any mobile dentistry
7 program registrant, or deny, limit, suspend, or revoke his or her
8 license or certificate, or the registration of the mobile dentistry
9 program registrant, if it finds that the dentist, dental therapist,
10 dental hygienist, expanded function dental auxiliary, or mobile
11 dentistry program registrant has done any of the following:

12 1. The health care provider having been convicted of a crime,
13 the circumstances of which substantially relate to the practice of
14 dentistry, dental therapy, or dental hygiene, the practice of an
15 expanded function dental auxiliary, or the operation of a mobile
16 dentistry program;

17 2. Violated this act or any federal or state statute or rule
18 that relates to the practice of dentistry, dental therapy, dental
19 hygiene, or an expanded function dental auxiliary, or the operation
20 of a mobile dentistry program;

21 3. Subject to state law, practiced dentistry, dental therapy,
22 or dental hygiene or as an expanded function dental auxiliary while
23 his or her ability was impaired by alcohol or other drugs;

1 4. Engaged in conduct that indicates a lack of knowledge of, an
2 inability to apply, or the negligent application of principles or
3 skills of dentistry, dental therapy, or dental hygiene or the
4 practice of an expanded function dental auxiliary. The examining
5 board shall immediately revoke the license to practice dental
6 therapy granted under State Dental Act of an individual who
7 qualified for the license on the basis of graduation from a dental
8 therapy education program if, upon the conclusion of the four-year
9 period the program is not accredited.

10 If the program subsequently becomes accredited, the examining
11 board may allow reinstatement of a revoked license described in this
12 subsection.

13 SECTION 8. This act shall become effective November 1, 2025.

14
15 60-1-11317 TKR 01/15/25
16
17
18
19
20
21
22
23
24